

24STCV09235 24STCV09235

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-09-18

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Case Number: 24STCV09235 Hearing Date: September 18, 2026 Dept: 414

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Smalls v. Lawrence Title

Friday, September 18,
2026

[TENTATIVE] ORDER DENYING DEFENDANT

LAWRENCE TITLE'S MOTION TO ENFORCE THE PARTIES' JANUARY 7, 2026, SETTLEMENT AND
FOR AN ORDER ENTERING AND/OR MODIFYING THE JUDGMENT (1619)

I.

BACKGROUND

The first amended complaint alleges that Defendant employed Plaintiff as a resident/ property manager. Plaintiff alleges nine causes of action for wage and hour claims under the Labor Code and a claim for unlawful/unfair business practices.

The

Court granted Defendant's first motion to enforce the parties' settlement and entered judgment pursuant to that agreement was memorialized on the record on January 7, 2026. (M.O. 4/10/26.) The Court also ordered Plaintiff to (1) sign the Stipulation for Judgment of Possession; and (2) sign a dismissal of her cross-complaint in Case No. 25NNCV01902, to be filed along with Title's dismissal of the complaint. (M.O. 4/20/26.)

The

Court denied Defendants' application for an OSC Re: Contempt and for imposition

of sanctions against Plaintiff for Plaintiff's failure to comply with the Court's order. (M.O. 7/2/26.) Instead of complying with the order, Plaintiff filed a notice to relate this matter to the Burbank action. (Id.) That action was dismissed by the Court for lack of prosecution. (Id. p. 2.) Accordingly, the Court denied the motion as moot. (Id.)

II.

ARGUMENTS

Defendant

now requests an order to enforce the January 7, 2026, settlement or to amend or modify the judgment to include a mutual and unconditional release of all claims; a provision barring Plaintiff from filing any claims or lawsuits with respect to any issues arising from or relating to conduct that occurred before the January 7, 2026, settlement; as well as a non-disparagement clause.

Plaintiff's

opposition raises issues of bad faith, a contention that the settlement was fraudulent, and complaints against Plaintiff's former counsel. Plaintiff argues that Defendant concedes that a long-form agreement was never signed. Plaintiff contends that the Court cannot modify a judgment in "invent new, unagreed-upon terms." Plaintiff contends that the Court should reject Defendant's attempt to rely on an unverified, and unredacted transcript.

III.

LEGAL STANDARDS

A party can move for entry of judgment pursuant to the terms of the settlement. (Code Civ. Proc., § 664.6.) The court's power is limited to determining the existence of the agreement and to enforce its settlement. (Corkland v. Boscoe (1984) 156 Cal.App.3d 989, 994.) The court may receive oral testimony or may determine the motion upon declarations alone. (Id.) The court does not make modifications or force terms not agreed to in the written agreement. (Id.) at 207.

Interpreting contracts is a judicial function. (Cisneros

Alvarez v. Altamed Health Services Corporation (2021) 60 Cal.App.5th 572, 585 ["Ordinarily, the objective intent of the contracting parties is a

legal question determined solely by reference to the contract's terms." (Id.) The court applies general contract

principles when interpreting a settlement agreement.

(Leeman

v. Adams Extract & Spice, LLC (2015) 236 Cal.App.4th 1367, 1374.) The mutual intent of the parties and interpretation of the contract are based on the language of the agreement alone. (Id.)

In construing contracts, "[t]he words of a contract are to be understood in their ordinary and popular sense, rather than according to their strict legal meaning; unless used by the parties in a technical sense, or unless a special meaning is given to them by usage, in which case the latter must be followed. (Civ.

Code, § 1644.) If the contract's language is clear and unambiguous, the court is "bound to give effect to the plain and ordinary meaning of the language used by the parties." (Coast

Plaza Doctors Hosp. v. Blue Cross of California (2000) 83 Cal.App.4th 677, 684.)

IV.

DISCUSSION

Defendant's first motion to enforce settlement identified the terms of settlement as follows: Plaintiff would 1) would vacate her apartment within 60 days after the initial payment by Title, (2) would, in the interim, execute a Stipulation for Judgment of Possession of her apartment, and (3) would dismiss her cross complaint in Case No. 25NNCV01902. The Court granted the motion and ordered that judgment be entered consistent with the terms of settlement. The settlement agreement contemplated that the agreement would be formalized in a long-form agreement.

Defendant admits that the contemplated long-form agreement included mutual general releases and a non-disparagement clause. Defendant seeks amendment of judgment to include those releases although Plaintiff did not sign a long-form agreement that included mutual releases and a non-disparagement clause. Defendant admits Plaintiff will not enter into a long-form agreement with those terms. (Reply 2:2-6.)

Defendant's reply states that the parties agreed to mutual general releases on the record and inclusion of a non-disparagement clause, but there is no evidence that Plaintiff agreed to the terms proposed by Defendant's

motion. Defendant does not cite to the portion of the January 7, 2026, transcript that specifically addressed the language of the provisions that Defendant now wants to insert. Additionally, Defendant requests inclusion of a provision barring future claims by Plaintiff, which does not appear on the January 7, 2026 transcript.

The Court is not authorized "to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon." (*Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360 [*italics in original*].) The January 7, 2026 transcript generally referred to an exchange of mutual general releases, a non-disparagement clause with a liquidated damages clause, and confidentiality provision. (D's Ex. 1, 13:3-6, 14:5-10, 15:13-14.) The proposed language of the anticipated clauses were not read into the record.

V.

CONCLUSION

Accordingly, the Court declines to amend judgment to include specific terms that Defendant now proposes. Defendant's motion is DENIED.